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No. 22-2830

No. 22-2830

In the United States Court of Appeals for the Seventh Circuit

IN THE UNITED STATES COURT OF APPEALS
FOR THE SEVENTH CIRCUIT

NORBERTO TORRES,

Norberto Torres

Plaintiff-Appellant,

v.

KENT BROOKMAN, et al.,

Kent Brookman, *et al.*

Defendants-Appellees.

Defendants-Appellees.

On Appeal from the United States District Court for the Southern District of Illinois
No. 3:19-cv-00248 (Hon. Stephen P. McGlynn)

On Appeal from the United States District Court for the Southern District of Illinois
No. 3:19-cv-00248; Hon. Stephen P. McGlynn

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March 21, 2024

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JURISDICTIONAL STATEMENT

Plaintiff-appellant sued Defendants-appellees under 42 U.S.C. § 1983 for violating his federal rights under the Fourteenth Amendment to the United States Constitution. The district court had subject-matter jurisdiction under 28 U.S.C. § 1331. The district court entered final judgment on September 15, 2022. SA.11.[1] Appellant timely filed a notice of appeal under Federal Rule of Appellate Procedure 4(c) on October 14, 2022, and the notice of appeal was docketed on October 17, 2022. A.181-83. This Court has jurisdiction under 28 U.S.C. § 1291.

ISSUE PRESENTED

Whether the district court erred in concluding that Mr. Torres's months-long segregative confinement in a cell riddled with feces, mold, mildew, and insects did not constitute an atypical and significant hardship compared to ordinary prison life sufficient to trigger procedural protections under the Due Process Clause.

INTRODUCTION

Appellant Norberto Torres's due process rights were violated when Appellees Brookman and Hart ignored his requests to conduct a procedurally proper disciplinary hearing and then sentenced him to three months of segregation in inhumane conditions. Mr. Torres spent 90 days in a cell covered in mildew and mold and infested with insects. Each time the cell's toilet was flushed, it exuded

[1] Citations to SA.### are to the Short Appendix appended to this brief. Citations to A.### are to the separately bound Appendix.

human waste onto the cell's floor. Mr. Torres filed suit under Section 1983 alleging that Brookman and Hart violated his due process rights by sentencing him to such conditions without following proper process. The district court concluded that these conditions were not "atypical" or "significant" enough compared to ordinary prison life to substantiate a claim to procedural due process. That conclusion was incorrect, and the district court's decision should be reversed.

Prisoners have a constitutional right to due process before they can be deprived of "life, liberty, and property." *Isby v. Brown*, 856 F.3d 508, 524 (7th Cir. 2018). Specifically, prisoners retain a liberty interest in avoiding conditions that "impose[] atypical and significant hardship on the inmate in relation to the ordinary incidents of prison life." *Sandin v. Conner*, 515 U.S. 472, 484 (1995). Prisoners alleging a due process violation, therefore, must first show that correctional officers did not follow proper process in sentencing them to segregation, and second, that the conditions of that confinement constitute an "atypical and significant hardship." On summary judgment, the district court must consider "the combined import of the duration of the segregative confinement *and* the conditions endured." *Hardaway v. Meyerhoff*, 734 F.3d 740, 743 (7th Cir. 2013).

Menard's warden about these conditions, but nothing was done to remedy them. Mr. Torres asked for cleaning supplies to clean the cell himself but was never provided with any.

After Mr. Torres was released from segregation, a grievance committee recognized that Mr. Torres's hearing was conducted improperly and expunged the infraction from his record.

Recognizing that his rights had been violated, Mr. Torres sued Brookman and Hart under 42 U.S.C. § 1983 to enforce the rights guaranteed to him by the Fourteenth Amendment's Due Process Clause. Prisoners have a constitutional right to due process before they can be deprived of "life, liberty, and property." *Isby v. Brown*, 856 F.3d 508, 524 (7th Cir. 2018). Specifically, prisoners retain a liberty interest in avoiding conditions that "impose[] atypical and significant hardship on the inmate in relation to the ordinary incidents of prison life." *Sandin v. Conner*, 515 U.S. 472, 484 (1995). Prisoners alleging a due process violation, therefore, must first show that correctional officers did not follow proper process in sentencing them to segregation, and second, that the conditions of that confinement constitute an "atypical and significant hardship." On summary judgment, the district court must consider "the combined import of the duration of the segregative confinement and the conditions endured." *Hardaway v. Meyerhoff*, 734 F.3d 740, 743 (7th Cir. 2013).

STATEMENT OF THE CASE

The dispositive issue on appeal is whether three months in a feces-ridden, moldy, insect-infested segregation cell rises to the level of an "atypical and significant hardship." If so, the case should move forward to permit Mr. Torres the opportunity to present his claim to a jury. This Court should reverse the decision below and permit this case to proceed to trial.

STATEMENT OF THE CASE

I. Factual Background

Mr. Torres is serving a 60-year sentence in the Illinois Department of Corrections. Throughout the events of this case, Mr. Torres was imprisoned at Menard Correctional Center in Menard, Illinois. Defendants Brookman and Hart both served on the Adjustment Committee at Menard, responsible for conducting disciplinary hearings and sentencing prisoners to extra punishments for any infractions.

A. Mr. Torres receives the first disciplinary report, which is promptly expunged

On March 13, 2017, Mr. Torres received Inmate Disciplinary Report Number 201700365/1-MEN ("the 365 Ticket"). A.142-43. While transferring a different prisoner to another facility, the Department of Corrections allegedly discovered a "Latin Folk questionnaire" filled out by Mr. Torres. A.142-43.

Defendants Brookman and Hart convened a hearing for the 365 Ticket on March 15, 2017. A.142. Mr. Torres requested a witness for this hearing, but Brookman and Hart did not produce him. A.177. After a hearing that lasted no more than 15 minutes, A.104, Defendants expunged the 365 Ticket. A.142.

B. Mr. Torres is confined in a moldy, contaminated cell for three months

Being placed in segregation significantly restricted Mr. Torres's life. He was not permitted to watch television, access a phone, or possess electronics. A.095-96. Department, "[t]hese questionnaires are given to members of the Latin Folk Union and have to be filled out and returned to a designated individual in the cell house.

the commissary. A.095. He was not even permitted to work. While in segregation, Mr. Torres was allowed out of his cell only once or maybe twice a week. A.095. "[We were] breathing in rust." A.120. Specifically, Mr. Torres's toilet "was leaking underneath with toilet backflush. There were signs of mold and mildew and insects everywhere." A.171. This backflush included feces going into his cell each time the toilet was flushed. A.011. Mr. Torres informed the warden of these conditions and asked for cleaning supplies to clean the cell himself. A.011. Mr. Torres was never provided any cleaning supplies, forcing him to endure these conditions for the entirety of his segregation. A.011. These conditions are in clear violation of the Illinois Administrative Code, which requires that every cell include a "flushable toilet," and that "each cell shall be maintained in a sanitary condition and cleaning materials shall be made available on a regular basis." A.031.

II. Proceedings Below

Mr. Torres brought this action pro se on February 28, 2019. A.005. On preliminary review, the district court divided Mr. Torres's claims into two counts: (1) a Fourteenth Amendment procedural due process claim against Defendants Brookman and Hart; and (2) an Eighth Amendment claim against Chief Administrative Officer Lashbrook for cruel and unusual punishment. The district court determined that Mr. Torres's three months of confinement in inhumane conditions was not an "atypical or significant hardship" because "a three-month period in punitive segregation is a miniscule part of Plaintiff's imprisonment." SA.009 (quoting *Lisle*, 933 F.3d at 721).

D. The 409 Ticket is expunged because the hearing was not held in accordance with Illinois Department of Corrections Regulations

While in segregation, on May 24, 2017, Mr. Torres filed a grievance regarding the 409 Ticket and his placement in segregation. A.025. Mr. Torres's Grievance Officer affirmed his grievance. Although the Officer agreed with Brookman and Hart's decision on the merits, he recommended that Ticket 409 "be expunged due to

failed to offer evidence that his conditions in segregation were atypical and significant.

at summary judgment by failing to construe the evidence in the light most favorable to Mr. Torres (the non-movant below) and erred in its conclusion that Mr. Torres failed to offer evidence that his conditions in segregation were atypical and significant.

SUMMARY OF ARGUMENT

This Court should reverse because the district court misapplied the standard at summary judgment by failing to construe the evidence in the light most favorable to Mr. Torres (the non-movant below) and erred in its conclusion that Mr. Torres failed to offer evidence that his conditions in segregation were atypical and significant.

The district court committed three legal errors, each of which justifies reversal. First, the district court incorrectly relied on the length of Mr. Torres's sentence to conclude that his 90 days in segregation could not amount to an atypical and significant hardship. Second, the district court improperly imported an element from an Eighth Amendment conditions of confinement claim to Mr. Torres's Fourteenth Amendment Due Process claim by faulting him for not putting forth evidence of a substantial risk of harm. Third, the district court did not construe all facts in a light most favorable to Mr. Torres and ignored undisputed material facts in the record. With regard to the substance of Mr. Torres's claim, this Court should reverse because Mr. Torres did offer "evidence that would allow a jury to determine that the conditions in segregation deviated substantially from ordinary conditions of his confinement." SA.009. Evidence of prolonged exposure to human waste has consistently been sufficient to deny summary judgment. Mr. Torres presented evidence of that horrid condition—and much more.

The district court committed three legal errors, each of which justifies reversal. First, the district court incorrectly relied on the length of Mr. Torres's sentence to conclude that his 90 days in segregation could not amount to an atypical and significant hardship. Second, the district court improperly imported an element from an Eighth Amendment conditions of confinement claim to Mr. Torres's Fourteenth Amendment Due Process claim by faulting him for not putting forth evidence of a substantial risk of harm. Third, the district court did not construe all facts in a light most favorable to Mr. Torres and ignored undisputed material facts in the record.

STANDARD OF REVIEW

This Court reviews de novo a district court's grant of summary judgment. All facts must be construed in a light favorable to Mr. Torres, drawing all reasonable inferences in his favor. *Lisle*, 933 F.3d at 716.

STANDARD OF REVIEW

This Court reviews *de novo* a district court's grant of summary judgment. All facts must be construed in a light favorable to Mr. Torres, drawing all reasonable inferences in his favor. *Lisle*, 933 F.3d at 716.

ARGUMENT

Because Brookman and Hart violated Mr. Torres's due process rights at his second hearing, Mr. Torres was confined in a cell for three months that was infested with mold, mildew, insects, and rust, and consistently flooded with sewage water containing human waste. These conditions were "atypical and significant" under Seventh Circuit precedent and implicate Mr. Torres's liberty interests.

The Constitution does not always "create an interest in avoiding transfer within a correctional facility." *Townsend v. Fuchs*, 522 F.3d 765, 771 (7th Cir. 2008) (citing *Wilkinson v. Austin*, 545 U.S. 209, 222 (2005)). The Supreme Court has determined, however, that the Fourteenth Amendment provides to inmates a liberty interest in avoiding placement in more restrictive conditions, such as segregation, when those conditions pose an atypical and significant hardship when compared to the ordinary incidents of prison life. *Id.* (citing *Sandin*, 515 U.S. at 484). This "atypical and significant hardship" does not need to rise to the level of an Eighth Amendment violation to "trigger[] procedural requirements." *Gillis v. Litscher*, 468 F.3d 488 (7th Cir. 2006). Determining whether conditions rise to this level is a "fact intensive inquiry," and is therefore ultimately a fact question for the jury. *Gillis*, 468 F.3d at 492. In doing so, courts must look at "the combined import of the duration of the segregative confinement and the conditions endured." 545 U.S. at 224. *Marion v. Columbia*, 559 F.3d 693, 697 (7th Cir. 2009). Neither is dispositive, as

I. The district court's summary judgment opinion misstated the law and misapplied the summary judgment standard

A. The district court erred by assessing the amount of time that Mr. Torres spent in segregation relative to his sentence

The district court's assertion that "Courts have dismissed due process claims based on relatively short periods of disciplinary segregation without inquiry into the specific conditions of confinement," misstates the law on segregative confinement claims. SA.008-09 (citing *Marion*, 559 F.3d at 698; *Townsend*, 522 F.3d at 766; *Hoskins v. Lenear*, 395 F.3d 372, 374-75 (7th Cir. 2005); *Thomas v. Ramos*, 130 F.3d 754, 761 (7th Cir. 1997)). This Court has made clear that district courts must examine "the combined import of the duration of the segregative confinement and the conditions endured." *Hardaway*, 734 F.3d at 743 (first emphasis added). This Court has "found that, depending on the conditions of confinement and whether there were any additional punishments, a period of segregation considerably shorter than four months may" constitute an atypical and significant hardship. *Lisle*, 933 F.3d at 721 (citing *Kervin v. Barnes*, 787 F.3d 833, 836 (7th Cir. 2015)).

In *Marion*, while 240 days of segregation was insufficient on its own to be an "atypical and significant" condition, the case was remanded for further fact finding into the conditions of that confinement. *Id.* at 698-99. In *Townsend*, the

holding turned not on the fact that the plaintiff was in segregation for only 59 days goes into consideration of liberty interests includes the length of the plaintiff's but rather on the fact that the segregative confinement was administrative rather sentence as a variable. And yet, the district court still based its decision on its than disciplinary. *Lekas v. Briley*, 405 F.3d 602, 608-09 (7th Cir. 2005). In *Thomas*, assessment that Mr. Torres's time in segregation was "miniscule" in comparison to the Court's conclusion explicitly depended on the combination of the duration and his full sentence. But a prisoner serving a 60-year sentence has no less of a conditions of disciplinary segregation. *Thomas*, 130 F.3d at 762 (quoting *Williams* constitutional liberty interest than someone serving a six-day sentence. Whether or *v. Ramos*, 71 F.3d 1246, 1249 (7th Cir. 1995)).
not conditions rise to the level of atypical and significant does not depend on the

The district court further erred in considering the length of Mr. Torres's length of a prisoner's sentence. To determine if certain conditions rise to a segregative confinement in relation to the length of his underlying sentence.
protectable liberty interest, a jury decides whether they are atypical and significant Neither the Supreme Court nor this Court has ever held that the fact-intensive . . . in relation to the ordinary incidents of prison life." *Sandin*, 515 U.S. at 484; *see* inquiry that goes into consideration of liberty interests includes the length of the *also Wilkinson*, 545 U.S. at 223-24. The fact that Mr. Torres was serving a 60-year plaintiff's sentence as a variable. A prisoner serving a 60-year sentence has no less sentence does not make the conditions he endured any less horrific, nor do they make of a constitutional liberty interest than someone serving a six-day sentence.
the deprivation of his procedural rights any less redressable.

Whether or not conditions rise to the level of atypical and significant does not

To the extent that the district court's opinion relied on its assessment that depend on the length of a prisoner's sentence. To the extent that the district court's "[v]iewed in the context of Plaintiff's 60-year sentence, a three-month period in opinion relied on its assessment that "[v]iewed in the context of Plaintiff's 60-year punitive segregation is a miniscule part of Plaintiff's imprisonment," SA.009, it sentence, a three-month period in punitive segregation is a miniscule part of cannot stand.
Plaintiff's imprisonment," SA.009, it cannot stand.

2. The district court further erred by requiring Mr. Torres to prove physical or mental harm because of his confinement

B. The district court further erred by requiring Mr. Torres to prove physical or mental harm because of his confinement

The district court again misconstrued the law when it faulted Mr. Torres for
The district court again misconstrued the law when it faulted Mr. Torres for not alleging "that he suffered physical or mental harm or substantial risk to his health not alleging "that he suffered physical or mental harm or substantial risk to his because of his three-month confinement in the cell." SA.009. There is no

requirement that plaintiffs allege any physical or mental harm because of confinement in his cell to plead a violation of his due process rights.

To be sure, claims challenging the conditions of confinement under the *Eighth Amendment* require showing that the conditions exposed an inmate to "a substantial risk of serious harm," *Townsend*, 522 F.3d at 773 (citing *Farmer v. Brennan*, 511 U.S. 825, 847 (1994)). But claims alleging that a violation of a prisoner's due process rights resulted in an atypical and significant hardship have no such requirement. It is well settled precedent that claims of an atypical and significant hardship *do not* have to rise to the level of an Eighth Amendment claim "result[ing] in the denial of the minimal civilized measure of life's necessities." *Farmer*, 511 U.S. at 834; *Wilkinson*, 545 U.S. at 224 (establishing that there is a liberty interest short of an Eighth Amendment violation triggering due process protections).

Even if it were a requirement for Mr. Torres to allege a substantial risk to his health, however, Mr. Torres has made clear that his alleged injuries include damage to his health resulting from this due process violation. Mr. Torres contends that breathing in the contaminants in his segregation cell harmed his physical health and that the time in segregation injured his back, specifically a dislocated disk. A.122. This evidence alone is sufficient to show an atypical and substantial hardship. *See Jones v. Frank*, No. 19-cv-1307-SMY, 2024 WL 1138771, at *6 (S.D. Ill. March 15,

health because of his three-month confinement in the cell." SA.009. There is no requirement that plaintiffs allege any physical or mental harm because of confinement in his cell to plead a violation of his due process rights. To be sure, claims challenging the conditions of confinement under the Eighth Amendment require showing that the conditions exposed an inmate to "a substantial risk of serious harm," *Townsend*, 522 F.3d at 773 (citing *Farmer v. Brennan*, 511 U.S. 825, 847 (1994)). But claims alleging that a violation of a prisoner's due process rights resulted in an atypical and significant hardship have no such requirement.

CONCLUSION

Mr. Torres respectfully asks the Court to reverse the judgment below.

Respectfully submitted,

s/ Matthew L. Farley

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March 21, 2024

CERTIFICATE OF COMPLIANCE

The foregoing brief complies with the type-volume limitation of Circuit Rule 32(c). The brief contains 1,871 words, excluding those parts of the brief exempted by Federal Rule of Appellate Procedure 32(f). This brief complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5)-(6) and Circuit Rule 32(b) because this brief has been prepared in a proportionately spaced typeface using Typst 0.13.0 (Libertation Serif 14-point font.

s/ Matthew L. Farley
Signature

March 21, 2024
Date

CERTIFICATE OF SERVICE

Pursuant to Federal Rule of Appellate Procedure 25, I hereby certify that on March 22, 2024, I electronically filed the foregoing Brief of Appellant via the Court's CM/ECF system, and service was accomplished on counsel of record by that means.

s/ Matthew L. Farley
Signature

March 22, 2024
Date

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The foregoing brief complies with the type-volume limitation of Circuit Rule 32(c). The brief contains 6,881 words, excluding those parts of the brief exempted by Federal Rule of Appellate Procedure 32(f). This brief complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5)-(6) and Circuit Rule 32(b) because this brief has been prepared in a proportionately spaced typeface using Microsoft Word 365 (2016) in Times New Roman 14-point font.
s/ Matthew L. Farley
Signature
March 21, 2024
Date
CERTIFICATE OF SERVICE
Pursuant to Federal Rule of Appellate Procedure 25, I hereby certify that on March 22, 2024, I electronically filed the foregoing Brief of Appellant via the Court's CM/ECF system, and service was accomplished on counsel of record by that means.
s/ Matthew L. Farley
Signature
March 22, 2024
Date